



Licensing (Certificates in Suspense) (Scotland) Act 1967

1967 CHAPTER 14

An Act to provide for the abolition of the suspension of certificates for the sale by retail of exciseable liquor, and for the amendment of the procedure for the removal of existing certificates which are in suspense to premises other than those specified in the certificate and for purposes connected with the matters aforesaid. [22nd March 1967]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Subject to subsection (2) of this section, no certificate for the suspension of a certificate for the sale by retail of exciseable liquor shall be given by the Commissioners of Customs and Excise under either section 88(1) (suspension of certificate where business discontinued owing to war circumstances), or section 96(1) (suspension of certificate where licensed premises are compulsorily acquired), of the principal Act; and accordingly the said section 88(1) and, subject as aforesaid, the said section 96(1) are hereby repealed.

Abolition of
certificates in
suspense.

(2) Where a notice to treat has been served or has, by virtue of paragraph 1(1) of Schedule 6 to the Town and Country Planning (Scotland) Act 1945, been deemed to have been served on any person in respect of the compulsory acquisition of licensed premises on or before the 4th day of August 1966, nothing in the foregoing subsection shall preclude the Commissioners of Customs and Excise from giving a certificate under section 96(1) of the principal Act for the suspension of the certificate for the sale by retail of exciseable liquor granted in respect of those premises.

(3) Without prejudice to the provisions of section 85, and Parts VI and VII, of the principal Act so far as they relate to a certificate which is in suspense being extinguished in certain circumstances, any certificate which is in suspense by virtue of either section 88 or section 96 of the principal Act, before the commencement of this Act, or which becomes suspended under the said section 96 by virtue of subsection (2) of this section, shall be extinguished on a date five years after the said commencement; and accordingly the said section 85, and the said Parts VI and VII, shall cease to have effect on the said date.

Amendment
of procedure
for removal
of certificates
in suspense.

2. Sections 92(1) and 100(1) of the principal Act (which respectively make provision as to removal of a certificate which has been suspended by reason of war circumstances and of compulsory acquisition) shall apply during the period of five years mentioned in subsection (3) of the foregoing section to the removal of a certificate which is for the time being in suspense in the circumstances mentioned in each of the aforesaid sections, subject to the following modifications—

- (a) the licensing court may authorise a removal of a certificate only at a general half-yearly meeting of the court, and the court shall not authorise such a removal unless application is made to them for that purpose not later than fourteen days before the first day of that meeting;
- (b) the following provisions of the principal Act shall, subject to the modifications set out in this paragraph and any other necessary modifications, apply to an application made by virtue of the foregoing paragraph as they apply to an application for the grant of a new certificate mentioned in those provisions, that is to say—
 - (i) section 35 (publication of list of applications) except that in subsection (2) of that section the reference to the registrar of every registration district shall be construed as a reference to the registrar of the district in which the premises to which it is proposed to remove the certificate are situated;
 - (ii) section 36 (objections to grant or transfer of certificate);
 - (iii) section 37 (consideration of applications at general half-yearly meeting of licensing court);
 - (iv) section 49 (appeals from licensing court to court of appeal) so however that premises shall be construed as meaning the premises to which it is proposed to remove the certificate and the proviso to subsection (1) thereof shall be omitted; and sections 93 and 101 of the principal Act so far as they provide for appeal against a refusal of a licensing court to

authorise a removal of the certificate under sections 92(1) and 101(1) of the said Act respectively are hereby repealed.

3.—(1) In this Act “the principal Act” means the Licensing Interpretation (Scotland) Act 1959 as amended by the Licensing (Scotland) Act 1962. and construction.
1959 c. 51.

(2) This Act shall be construed as one with the principal Act. 1962 c. 51.

4.—(1) This Act may be cited as the Licensing (Certificates in Suspense) (Scotland) Act 1967, and the Licensing (Scotland) Acts 1959 and 1962 and this Act may be cited together as the Licensing (Scotland) Acts 1959 to 1967. Citation
and extent.

(2) This Act shall extend to Scotland only.